

contractors, or how any alleged negligence in hiring or retaining or supervising such employees/contractors led to Plaintiff's injury.

For COA 4, that claim appears to be based upon the lease. (FAC ¶ 41.) But the attached lease does not show MPs as parties. Claims of agency are not sufficiently pled and fail to address how liability could attach to MPs where the landlord has since been dismissed from this action. Nor are facts alleged to support the assertion that the flooding at issue was caused by MPs or came from any common area.

For COA 6, the FAC makes vague assertions in ¶ 50 about "Defendants" having harassed and threatened Plaintiff, but fails to state who did so, or how that created a condition which could constitute a private nuisance.

For COA 7, Plaintiff has failed to identify the particular portions of the statutory scheme which were allegedly violated, and state with reasonable particularity the facts supporting the statutory elements of the violation. (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 619.) Vague assertions in the FAC at ¶ 55, which appear to be directed to the landlord, do not suffice to state the claim as to MPs.

For each of those COAs, the FAC fails to allege facts sufficient to state the COA, and COA 3 is also uncertain as pled. The Demurrer is therefore **SUSTAINED**.

Plaintiff has not met her burden here to show how any potential amendment could cure these deficiencies. However, as the FAC addressed MPs only as Does, Plaintiff will be provided with an opportunity to amend to attempt to state specific facts as to each of the MPs. Plaintiff should carefully consider the elements of any of these COAs that she may attempt to reassert as to MPs, and fully state the requisite factual basis for each, as further leave to amend should not be presumed.

The Motion to Strike

The Motion to Strike is **GRANTED**.

No facts are alleged to demonstrate a basis for any fee claim as to MPs. The FAC also fails to allege facts sufficient to support a punitive damages claim against MPs. A claim for punitive damages must be supported by specific factual allegations: conclusory characterization of conduct as "intentional, willful and fraudulent" is insufficient to state a claim under *Civil Code § 3294*. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Plaintiff has failed to do so here. The Motion to Strike is therefore **GRANTED**, with 15 days' leave to amend.

Counsel for MPs to give notice.

7. Carlton v. Ford Motor
Company
24-1445099

Before the Court is the Motion for Summary Adjudication filed by Defendant Ford Motor Company ("Ford") on 1/5/26.

		It appears that an Opposition was belatedly served by Plaintiffs Richard Carlton and Patricia Carlton ("Plaintiffs"), to which Ford has responded here. But no Opposition has been filed. The hearing is therefore continued to 7/9/26, at 1:30 p.m. Plaintiffs are to file the Opposition papers previously served on Ford, along with a declaration stating the reason for the filing error and how/when service on Ford was effectuated, by 6/29/26. Ford may respond thereto, if it deems that necessary, by no later than 7/2/26. No other further briefing is permitted. <i>Ford is to give notice of this ruling.</i>
8.	Silveira v. Boardwalk Office Associates LLC 24-1407563	(Withdrawn)
9.	Corzine v. Riemann 20-1133569	Before the Court are two Motions filed by Defendant David Kent Riemann ("Defendant") on 3/23/26, as follows: (1) Motion to Clarify Scope of Evidentiary Sanctions Related to Local Rule 317 Compliance (Motion 1 below); and (2) Motion for Relief from Evidentiary Sanctions Pursuant to Code of Civil Procedure §473(b) (Motion 2 below). <u>Motion 1</u> seeks "clarification" that Defendant may present "previously disclosed witnesses, documentary evidence, deposition testimony" and defenses consistent with this Court's 3/6/26 order. But as the 3/6/26 Order and the related Minute Order of 2/27/26 reflect, the evidentiary sanction that was imposed precludes Defendant from presenting any documents or witnesses or other evidence at trial which was not timely disclosed in accordance with OCSC Rule 317. To the extent that such evidence was not timely disclosed in accordance with OCSC Rule 317, it is thus barred. <u>Motion 2</u> seeks relief from that evidentiary sanction under C.C.P. § 473(b). But the party seeking relief under the discretionary prong of C.C.P. § 473(b) has the burden of presenting declarations or other evidence showing specific facts to establish "mistake, inadvertence, surprise or excusable neglect." (<i>Hopkins & Carley v. Gens</i> (2011) 200 Cal.App.4th 1401, 1410.) Here, the Motion fails to identify what "mistake, inadvertence, surprise or excusable neglect" occurred, and fails to present any evidence whatsoever. Both Motions are therefore DENIED. <i>Clerk to give notice.</i>
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